

Senate Amendment to  
House File 1028

H-1343

1 Amend House File 1028, as amended, passed, and reprinted by  
2 the House, as follows:

3 1. By striking everything after the enacting clause and  
4 inserting:

5 <Section 1. Section 8.57C, subsections 2, 3, and 4, Code  
6 2025, are amended to read as follows:

7 2. Moneys in the fund in a fiscal year shall be used as  
8 appropriated by the general assembly ~~for the acquisition~~  
9 ~~of computer hardware and software, software development,~~  
10 ~~telecommunications equipment, and maintenance and lease~~  
11 ~~agreements associated with technology components and for the~~  
12 ~~purchase of equipment intended to provide an uninterruptible~~  
13 ~~power supply to the department of management to provide~~  
14 a stable funding source for implementation costs of state  
15 information technology projects that enhance the state's  
16 technology infrastructure, improve government services,  
17 and promote innovation and economic development, including  
18 but not limited to new information technology projects  
19 and infrastructure replacement efforts of a department or  
20 establishment.

21 3. a. The department of management shall prioritize  
22 proposed projects based on all of the following considerations:

23 (1) Whether the project aligns with the state's strategic  
24 priorities.

25 (2) Whether the project promotes or introduces new  
26 technology or significantly improves an existing system.

27 (3) Whether the project is feasible and whether the  
28 department or establishment has established readiness for the  
29 project to proceed, including a clear assessment of timelines,  
30 budgets, and measurable outcomes.

31 (4) Whether the project includes a clear change management  
32 strategy to support user adoption and aligns with lean  
33 enterprise principles to maximize value, minimize waste, and  
34 ensure continuous improvement.

35 (5) Whether the project provides a positive return on

1 investment, considering both financial returns and nonfinancial  
2 benefits such as improved public safety, education, or health  
3 care.

4 (6) Whether the project results in infrastructure that is  
5 scalable across the state enterprise.

6 (7) Whether the department or establishment has identified  
7 how the completed project will be sustained beyond the initial  
8 funding period.

9 (8) Whether the project improves access to governmental  
10 services, particularly in rural communities.

11 (9) Whether the project involves an infrastructure project  
12 as opposed to maintenance or standard upgrades of existing  
13 technology.

14 b. The department of management shall provide a prioritized  
15 list of proposed projects for funding to the governor, who  
16 shall use the list in developing a budgetary recommendation  
17 for the general assembly pursuant to section 8.21 for the  
18 fiscal year beginning July 1, 2026, and for each fiscal year  
19 thereafter.

20 ~~3. a. There is appropriated from the general fund of the~~  
21 ~~state to the technology reinvestment fund for the fiscal year~~  
22 ~~beginning July 1, 2025, and for each subsequent fiscal year~~  
23 ~~thereafter, the sum of seventeen million five hundred thousand~~  
24 ~~dollars.~~

25 ~~b. There is appropriated from the rebuild Iowa~~  
26 ~~infrastructure fund for the fiscal year beginning July 1, 2023,~~  
27 ~~and ending June 30, 2024, the sum of eighteen million three~~  
28 ~~hundred ninety thousand two hundred ninety dollars to the~~  
29 ~~technology reinvestment fund, notwithstanding section 8.57,~~  
30 ~~subsection 3, paragraph "c".~~

31 ~~c. There is appropriated from the rebuild Iowa~~  
32 ~~infrastructure fund for the fiscal year beginning July 1, 2024,~~  
33 ~~and ending June 30, 2025, the sum of twenty-one million one~~  
34 ~~hundred thirty-one thousand eight hundred seventy-three dollars~~  
35 ~~to the technology reinvestment fund, notwithstanding section~~

1 ~~8.57, subsection 3, paragraph "c".~~

2 c. Notwithstanding section 8.33, moneys in the technology  
3 reinvestment fund that remain unencumbered or unobligated at  
4 the close of a fiscal year shall not revert but shall remain  
5 available for expenditure for the purposes designated until  
6 the close of the fiscal year that ends two years after the  
7 end of the fiscal year for which the appropriation was made.  
8 Notwithstanding section 12C.7, subsection 2, interest or  
9 earnings on moneys in the fund shall be credited to the fund.

10 ~~4. Annually, on~~ On or before January 15 of each year, a  
11 ~~state agency that received an appropriation from this fund~~  
12 the department of management shall report to the legislative  
13 ~~services agency and the department of management general~~  
14 assembly the status of all projects funded under this section  
15 that have been completed since the previous report was  
16 submitted or that are in progress. The report ~~shall~~ must  
17 include a description of the project, the progress of work  
18 completed, the total estimated cost of the project, a list of  
19 all revenue sources being used to fund the project, the amount  
20 of ~~funds~~ moneys expended, the amount of ~~funds~~ moneys obligated,  
21 and the date the project was completed or an estimated  
22 completion date of the project, where applicable.

23 Sec. 2. Section 8.78, Code 2025, is amended to read as  
24 follows:

25 **8.78 Background checks.**

26 An applicant for employment with the department, or  
27 an applicant for employment with a supported entity for a  
28 position as information technology staff, may be subject to a  
29 background investigation by the department. The background  
30 investigation may include, without limitation, a work history,  
31 financial review, request for criminal history data, and  
32 national criminal history check through the federal bureau of  
33 investigation. In addition, a contractor, vendor, employee, or  
34 any other individual performing work for the department, or an  
35 individual on the information technology staff of a supported

1 entity, may be subject to a national criminal history check  
2 through the federal bureau of investigation at least once  
3 every ~~ten~~ five years, including, without limitation, any time  
4 the department or supported entity has reason to believe an  
5 individual has been convicted of a crime. The department may  
6 request the national criminal history check and, if requested,  
7 shall provide the individual's fingerprints to the department  
8 of public safety for submission through the state criminal  
9 history repository to the federal bureau of investigation.  
10 The individual shall authorize release of the results of the  
11 national criminal history check to the department and the  
12 applicable supported entity. The department shall pay the  
13 actual cost of the fingerprinting and national criminal history  
14 check, if any, unless otherwise agreed as part of a contract  
15 between the department or supported entity and a vendor or  
16 contractor performing work for the department or supported  
17 entity. The results of a criminal history check conducted  
18 pursuant to [this section](#) shall not be considered a public  
19 record under [chapter 22](#).

20     Sec. 3. NEW SECTION.   **8.94 Contracts — prohibited terms.**

21     Provisions included in a contract entered into pursuant to  
22 this subchapter that impose terms or conditions prohibited by  
23 this section are void as contrary to public policy. Such a  
24 contract shall be interpreted and enforced as if the contract  
25 did not include the prohibited terms or conditions. Prohibited  
26 terms and conditions include all of the following:

27     1. A provision requiring the department or a supported  
28 entity to defend, indemnify, hold harmless another person, or  
29 otherwise assume the debt or liability of another person in  
30 violation of Article VII, section 1, of the Constitution of the  
31 State of Iowa.

32     2. A provision that seeks to impose a term that is unknown  
33 to the department or supported entity at the time of signing  
34 the contract or that can be unilaterally changed by an entity  
35 other than the department or a supported entity.

1     3. A provision that violates chapter 13 by not allowing  
2 the department or a supported entity to participate in its own  
3 defense through representation by the attorney general.

4     4. A provision that grants to a person other than the  
5 attorney general the authority to convey to a court or litigant  
6 the state's consent to any settlement of a suit involving the  
7 contract when such settlement could impose liability on the  
8 state.

9     5. A provision that specifies that the contract is governed  
10 by the laws of a foreign state or nation.

11    6. A provision that claims blanket confidentiality of the  
12 contract's terms.

13    7. A provision that claims that payment terms, including but  
14 not limited to cost proposals or other pricing information, of  
15 the contract are confidential.

16    8. A provision that authorizes or requires a venue for  
17 litigation other than an appropriate state or federal court  
18 sitting in Iowa.

19    9. A provision that requires the department or a supported  
20 entity to pay attorney fees, court costs, or other litigation  
21 expenses in the event of a contractual dispute.

22    10. A provision that imposes on the department or a  
23 supported entity binding arbitration or any other binding  
24 extrajudicial dispute resolution process in which the final  
25 resolution is not determined by the state.

26    11. A provision that waives the department's or a supported  
27 entity's right to a jury trial.

28    12. A provision that obligates the department or a supported  
29 entity to pay late payment charges not consistent with section  
30 8A.514, interest greater than allowed under section 8A.514 or  
31 other applicable law, or any cancellation charges, as such  
32 charges constitute pledges of the state's credit.

33    13. A provision that obligates the department or a supported  
34 entity to pay a tax.

35    14. A provision that imposes a prior notice obligation

1 on the department or a supported entity as a condition for  
2 the automatic renewal of a software license. The department  
3 or a supported entity may provide notice of its intent to  
4 terminate a software license at any time before the renewal  
5 date established in the contract.

6 15. A provision that obligates the department or a supported  
7 entity to accept risk of loss before the receipt of items or  
8 goods.

9 16. A provision that obligates the department or a supported  
10 entity to have commercial insurance.

11 17. A provision that obligates the department or a supported  
12 entity to grant to a nongovernmental entity full or partial  
13 ownership of intellectual property developed pursuant to the  
14 contract when the intellectual property is developed in whole  
15 or in part using federal funding.

16 18. A provision that limits the time in which the department  
17 or a supported entity may bring a legal claim under the  
18 contract to a period shorter than that provided in Iowa law.

19 19. A boilerplate provision included in transactional  
20 documents received by the department or a supported entity that  
21 seeks to alter the terms of the contract or to impose new terms  
22 in the contract.

23 Sec. 4. NEW SECTION. 8.95 **Contracts — required terms.**

24 All of the following provisions shall be deemed to be  
25 included in a contract entered into by the department or a  
26 supported entity under this subchapter:

27 1. *Governing law.* The contract shall be governed by  
28 the laws of the state of Iowa, without giving effect to any  
29 conflicts of law principles of Iowa law that may require the  
30 application of another jurisdiction's law.

31 2. *Venue.* Any litigation commenced in connection with the  
32 contract shall be brought and maintained in an appropriate  
33 state or federal court sitting in Iowa.

34 Sec. 5. NEW SECTION. 8.96 **Contracts — limitation of**  
35 **liability — prohibited terms.**

1     Notwithstanding section 8A.311, subsection 22, and rules  
2     adopted pursuant to that subsection, the director may include  
3     a contractual limitation of vendor liability in information  
4     technology goods and services contracts. A contractual  
5     limitation of vendor liability must take into consideration the  
6     public interest and the mitigation of risks associated with the  
7     use of information technology goods or services. Any portion  
8     of a contractual limitation of vendor liability that includes  
9     a repudiation of all liability for cybersecurity incidents or  
10    a limitation on the vendor's liability for intentional torts,  
11    criminal acts, fraudulent conduct, intentional or willful  
12    misconduct, gross negligence, death, bodily injury, damage to  
13    real or personal property, intellectual property violations,  
14    liquidated damages, compliance with applicable laws, violations  
15    of confidential information obligations, or contractual  
16    obligations of the vendor pertaining to indemnification shall  
17    be void as a matter of law as contrary to public policy. A  
18    contractual limit of vendor liability that does not apply  
19    equally to the contracted parties or that limits a vendor's  
20    liability to less than the contract value inclusive of all  
21    possible extensions is void as a matter of law as contrary to  
22    public policy.

23    Sec. 6. NEW SECTION. **8.97 Confidentiality of communications**  
24    **with chief information security officer.**

25    In the interest of facilitating communication between  
26    the chief information security officer and other entities  
27    concerning security incidents and security breaches, all such  
28    communications and any documents generated based in whole or in  
29    part on such communications are confidential. Notwithstanding  
30    chapter 22 or any other provision of law to the contrary, the  
31    department shall not release such communications pursuant to  
32    state open records laws, and such communications shall not be  
33    received into evidence, subject to discovery, or otherwise  
34    used in a trial, hearing, or other proceeding in or before any  
35    court, regulatory body, or other authority of the state or a

1 political subdivision of the state, unless the communications  
2 are subject to a protective order that prohibits further  
3 disclosure of such communications and requires any court  
4 filings of such communications to be made under seal. It is  
5 the intent of the general assembly that these prohibitions and  
6 restrictions also apply to federal courts, regulatory bodies,  
7 and other authorities and for purposes of federal open records  
8 laws, to the extent allowed by federal law and court rules.  
9 The chief information security officer shall not release such  
10 communications other than for any of the following purposes:  
11 1. Identifying a cybersecurity threat, including the source  
12 of the cybersecurity threat, or a security vulnerability, and  
13 then only to government officials for purposes of addressing  
14 the threat.  
15 2. Responding to, or otherwise preventing or mitigating,  
16 a specific threat of death, serious bodily harm, or serious  
17 economic harm.  
18 3. Responding to, investigating, prosecuting, or otherwise  
19 preventing or mitigating a serious threat to a minor, including  
20 sexual exploitation and threats to physical safety.  
21 4. Preventing, investigating, disrupting, or prosecuting an  
22 offense under state or federal law.  
23 5. Providing a confidential cybersecurity briefing to the  
24 governor or a member of the general assembly.  
25 Sec. 7. NEW SECTION. **8.98 Criminal justice information.**  
26 1. The department is authorized to maintain an integrated  
27 information system that enables automated data sharing among  
28 the executive branch, judicial branch, and local agencies.  
29 2. The department is designated as the Iowa statistical  
30 analysis center for the purpose of coordinating with data  
31 resource agencies to provide data and analytical information  
32 to federal, state, and local governments. Notwithstanding any  
33 other provision of state law to the contrary, unless prohibited  
34 by federal law or regulation, the department shall be granted  
35 access, for purposes of research and evaluation, to all of



1 the data listed in this subsection, except that intelligence  
2 data and peace officer investigative reports maintained  
3 by the department of public safety shall not be considered  
4 data for the purposes of this section. The department of  
5 management and any record, data, or information obtained by the  
6 department under this subsection is subject to the federal and  
7 state confidentiality laws and rules, including as described  
8 in chapter 22, applicable to the original record, data, or  
9 information, and to the original custodian of the record,  
10 data, or information. Authorized access under this subsection  
11 includes but is not limited to all of the following:

- 12     *a.* Juvenile court records and all other information  
13 maintained under sections 232.147 through 232.151.
- 14     *b.* Child abuse information under sections 235A.15 through  
15 235A.19.
- 16     *c.* Dependent adult abuse records maintained under chapter  
17 235B.
- 18     *d.* Criminal history data maintained under chapter 692.
- 19     *e.* Sex offender registry information maintained under  
20 chapter 692A.
- 21     *f.* Presentence investigation reports maintained under  
22 section 901.4.
- 23     *g.* Corrections records maintained under sections 904.601 and  
24 904.602.
- 25     *h.* Community-based correctional program records maintained  
26 under chapter 904.
- 27     *i.* Parole records maintained under chapter 906.
- 28     *j.* Deferred judgment, deferred or suspended sentence, and  
29 probation records maintained under chapter 907.
- 30     *k.* Violation of parole or probation records maintained under  
31 chapter 908.
- 32     *l.* Fine and victim restitution records maintained under  
33 chapters 909 and 910.
- 34     *m.* Child welfare records maintained under chapter 235.
- 35     3. The department is authorized to provide data analysis and

1 reporting on issues that may affect the state's correctional  
2 population and various subgroups of the population. This  
3 reporting may include the review of filed, public legislative  
4 bills, joint resolutions, and amendments, and compiling  
5 criminal justice data for completion of correctional impact  
6 statements under section 2.56, racial impact statements, and an  
7 annual prison population forecast.

8     4. The department is authorized to maintain a multiagency  
9 information system to track the progress of juveniles and  
10 adults who have been charged with a criminal offense in  
11 the court system through various state and local agencies  
12 and programs. This system must utilize existing databases,  
13 including the Iowa court information system, the Iowa  
14 corrections offender network, the child welfare information  
15 system of the department of health and human services,  
16 the federally mandated national adoption and foster care  
17 information system, and other state and local databases  
18 pertaining to juveniles and to adults who have been charged  
19 with a criminal offense in the court system, to the extent  
20 practicable.

21     5. The multiagency information system is authorized to  
22 count and track decision points for juveniles in the juvenile  
23 justice system and minors in the child welfare system, evaluate  
24 the experiences of the juveniles and minors, and evaluate  
25 the success of the services provided. The system is also  
26 authorized to count and track decision points for adults who  
27 have been charged with a criminal offense in the court system,  
28 including but not limited to dismissed charges, convictions,  
29 deferred judgments, and sentence information.

30     6. If the department has insufficient moneys or resources  
31 to implement this section, the department is authorized to  
32 determine which portion of this section may be implemented, if  
33 any, and the remainder of this section shall not apply.

34     Sec. 8. NEW SECTION. **8.99 Confidentiality of data.**

35     1. For purposes of chapter 22, the department shall not be

1 deemed to be the lawful custodian of records the department  
2 maintains for another department or establishment under this  
3 subchapter, to the extent the records in question are held  
4 by the department as an automated data processing unit of  
5 government or held by the department solely for storage for  
6 another department or establishment. Such records include but  
7 are not limited to all of the following:

8     a. Electronic messaging system data.

9     b. Mainframe data.

10    c. Storage solutions or other electronic information, such  
11 as on-premises server data storage and cloud data storage.

12    2. If the department receives a request pursuant to chapter  
13 22 for records over which the department has determined it is  
14 not the lawful custodian, the department shall deny the request  
15 and inform the requester to seek the information from the  
16 lawful custodian as provided in chapter 22. The department's  
17 determination that it is not the lawful custodian of records is  
18 presumed valid. The presumption may be rebutted by clear and  
19 convincing evidence to the contrary.

20    3. The department shall provide assistance to the lawful  
21 custodian of records held by the department so that the lawful  
22 custodian can comply with the production obligations of chapter  
23 22.

24    4. If the department receives a subpoena in an  
25 administrative, civil, or criminal case for records for which  
26 the department is not the lawful custodian, the department  
27 shall notify the lawful custodian and the attorney general's  
28 office and cooperate in any efforts to resist the subpoena.

29    Sec. 9. Section 216A.131A, Code 2025, is amended to read as  
30 follows:

31    **216A.131A Criminal and juvenile justice planning.**

32    The department shall fulfill the responsibilities of  
33 this subchapter, including the duties specified in sections  
34 216A.133, 216A.135, ~~216A.136~~, ~~216A.137~~, ~~216A.138~~, and 216A.140.

35    Sec. 10. Section 216A.133, subsection 1, paragraphs d, e, f,

1 l, and t, Code 2025, are amended by striking the paragraphs.  
2 Sec. 11. Section 216A.133, subsection 1, paragraph q,  
3 subparagraphs (1) and (6), Code 2025, are amended by striking  
4 the subparagraphs.  
5 Sec. 12. Section 216A.133, subsection 1, paragraph s, Code  
6 2025, is amended to read as follows:  
7 s. Provide expertise and advice to the legislative  
8 services agency, the department of management, the department  
9 of corrections, the judicial branch, and others charged  
10 with formulating fiscal, correctional, or minority impact  
11 statements.  
12 Sec. 13. Section 216A.135, subsection 2, paragraph e, Code  
13 2025, is amended by striking the paragraph.  
14 Sec. 14. Section 232.147, subsection 2, paragraph i, Code  
15 2025, is amended to read as follows:  
16 i. The statistical analysis center for the purposes stated  
17 in [section 216A.136 8.98](#).  
18 Sec. 15. Section 232.147, subsection 3, paragraph n, Code  
19 2025, is amended to read as follows:  
20 n. The statistical analysis center for the purposes stated  
21 in [section 216A.136 8.98](#).  
22 Sec. 16. Section 232.147, subsection 4, paragraph i, Code  
23 2025, is amended to read as follows:  
24 i. The statistical analysis center for the purposes stated  
25 in [section 216A.136 8.98](#).  
26 Sec. 17. Section 232.149, subsection 5, paragraph f, Code  
27 2025, is amended to read as follows:  
28 f. The statistical analysis center for the purposes stated  
29 in [section 216A.136 8.98](#).  
30 Sec. 18. Section 232.149A, subsection 3, paragraph m, Code  
31 2025, is amended to read as follows:  
32 m. The statistical analysis center for the purposes stated  
33 in [section 216A.136 8.98](#).  
34 Sec. 19. Section 513C.10, subsection 1, paragraph a, Code  
35 2025, is amended to read as follows:

1     a. All persons that provide health benefit plans in this  
2 state including insurers providing accident and sickness  
3 insurance under chapter 509, 514, or 514A, whether on an  
4 individual or group basis; fraternal benefit societies  
5 providing hospital, medical, or nursing benefits under chapter  
6 512B; and health maintenance organizations, other entities  
7 providing health insurance or health benefits subject to state  
8 insurance regulation, and all other insurers as designated  
9 by the board of directors of the Iowa comprehensive health  
10 insurance association with the approval of the commissioner  
11 shall be members of the association. However, the state,  
12 including an institution under the control of the state board  
13 of regents, shall not be a member of the association.

14     Sec. 20. REPEAL. Sections 216A.136, 216A.137, and  
15 216A.138, Code 2025, are repealed.

16     Sec. 21. EFFECTIVE DATE. The following, being deemed of  
17 immediate importance, takes effect upon enactment:

18     The section of this Act amending section 513C.10, subsection  
19 1, paragraph "a".

20     Sec. 22. EFFECTIVE DATE. The following take effect July 1,  
21 2026:

22     The portions of the section of this Act amending section  
23 8.57C, subsections 2 and 4.

24     Sec. 23. APPLICABILITY. The following apply to contracts  
25 entered into or renewed on or after July 1, 2025:

26     1. The section of this Act enacting section 8.94.

27     2. The section of this Act enacting section 8.95.

28     3. The section of this Act enacting section 8.96.

29     Sec. 24. RETROACTIVE APPLICABILITY. The following applies  
30 retroactively to January 1, 2020:

31     The section of this Act amending section 513C.10, subsection  
32 1, paragraph "a".>

33     2. Title page, by striking lines 1 through 2 and inserting  
34 <An Act relating to state government, including matters  
35 under the purview of the department of management and state

1 membership in the Iowa individual health benefit reinsurance  
2 association, and including effective date, applicability, and  
3 retroactive>